

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
RASHEEN EVANS,

Plaintiff,

SUMMONS

-against-

Plaintiff names Bronx County as the proper venue.

CITY OF NEW YORK, Individually and in their capacities as New York City Police Officers, THOMAS CASEY, VALDRIN NIKQI, MICHAEL WHELAN, JASON LANDUSKY, and JOHN or JANE DOE 1-10,

The venue is where the tort arose.

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 8, 2019



SIM & DEPAOLA, LLP

BY: Markus A. Wilson, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. THOMAS CASEY
Shield #18749, Tax ID #950169
One Police Plaza, 11th Floor
New York, NY 10038

P.O. VALDRIN NIKQI
Shield #7009, Tax ID #954177
Narcotics Borough Manhattan North
One Police Plaza, 11th Floor
New York, NY 10038

SGT. MICHAEL WHELAN
Shield #2829, Tax ID #948440
Firearms Suppression Section
One Police Plaza
New York, NY 10038

DET. JASON LANDUSKY
Shield #1213, Tax ID #936908
Firearms Suppression Section
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
RASHEEN EVANS,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Individually and in their capacities
as New York City Police Officers, THOMAS CASEY,
VALDRIN NIKQI, MICHAEL WHELAN, JASON
LANDUSKY, and JOHN or JANE DOE 1-10,

Defendants.
-----X

Plaintiff, Rasheen Evans, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from an April 30, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Evans. Mr. Evans was subsequently charged with Criminal Possession of a weapon in the 2nd Degree and other related charges. As a result, Mr. Evans was deprived of his liberty and suffered physical injuries. Mr. Evans was wrongfully incarcerated for over seven (7) months, until: (i) the United States Attorney for the Southern District of New York filed a Nolle Prosequi on October 26, 2018; and (ii) the Bronx County District Attorney's Office dismissed the charges on October 31, 2018.
2. As a result of the wrongful incarceration and violations of his civil rights, Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff Rasheen Evans (“Mr. Evans”) resides at 946 East 211th Street, Bronx County, State of New York.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer Thomas Casey (“Casey”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Casey was, at the time relevant herein, a Police Officer under Shield #18749, Tax ID #950169 in the 46th Precinct, located at 2120 Ryer Avenue, Bronx, New York 10457. Defendant Casey is sued herein both in his individual and official capacities.
8. Defendant Police Officer Valdrin Nikqi (“Nikqi”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Nikqi was, at the

time relevant herein, a Police Officer under Shield #7009, Tax ID #954177 in the 46th Precinct, located at 2120 Ryer Avenue, Bronx, New York 10457. Defendant Nikqi is sued herein both in his individual and official capacities.

9. Defendant Sgt. Michael Whelan (“Whelan”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Whelan was, at the time relevant herein, a Police Officer under Shield #2829, Tax ID #948440 in the 46th Precinct, located at 2120 Ryer Avenue, Bronx, New York 10457. Defendant Whelan is sued herein both in his individual and official capacities.
10. Defendant Det. Jason Landusky (“Landusky”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Whelan was, at the time relevant herein, a Police Officer under Shield #1213, Tax ID #936908 in the 46th Precinct, located at 2120 Ryer Avenue, Bronx, New York 10457. Defendant Landusky is sued herein both in his individual and official capacities.
11. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
12. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants

John and Jane Doe 1 through 10 are sued herein both in their individual and official capacities.

13. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
14. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
15. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
16. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
17. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

18. On April 30, 2018, at approximately 8:50 p.m., Mr. Evans was walking out of a deli at 366 East 188th Street, between Webster Avenue and Marion Avenue, in Bronx, New York.
19. Mr. Evans began to walk down 188th street. He was not behaving in a suspicious manner and he was not ducking behind cars. There was no visible indication of a handgun on his person.

20. Mr. Evans continued to walk down 188th street when NYPD police officers in plain clothing jumped out of a vehicle and began to run towards him without identifying themselves as police officers.
21. Sgt. Michael Whelan, (Whelan) and Police Officer Valdrin Nikqi, (Nikqi) observed Mr. Evans walking down the street. At the time they observed Mr. Evan, he had not committed any crime and was not behaving in a manner that would lead Sgt. Whelan and PO Nikqi to believe criminal activity was a foot.
22. Sgt. Michael Whelan and PO Nikqi, while dressed in plainclothes was armed with their service weapons, exited their vehicle and began to chase Mr. Evans without identifying themselves as police officers.
23. Sgt Whelan and PO Nikqi chased Mr. Evans into 373 East 188th Street, Bronx, NY where he was grabbed, tackled to the ground and searched without probable cause.
24. Mr. Evans was taken to the 46th precinct where he was processed by defendants and placed in a jail cell. He was eventually taken to Central Booking. He was arraigned and charged with Criminal Possession of a Weapon and other related charges. Bail was set and Mr. Evans remained in custody for over seven (7) months, until the United States Attorney for the Southern District of New York filed a Nolle Prosequi on October 26, 2018 and the Bronx County District Attorney's Office, dismissed the charges on October 31, 2018.
25. At no point did the Defendants, including defendants Casey, Nikqi, Whelan and Landusky ever observe Mr. Evans commit any crime or offense before they began to chase him without identifying themselves as police officers.

26. At no point were the Defendants, including defendants Casey, Nikqi, Whelan and Landusky ever told by any witnesses that Mr. Evans committed any crime or violation of the law.
27. The Defendants, including defendants Casey, Nikqi, Whelan and Landusky had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Evans, as Plaintiff was only walking down the street.
28. Mr. Evans did not violate any law or local ordinance.
29. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause and have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
30. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest Plaintiff, as Plaintiff was merely walking down the street.
31. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.
32. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers

were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Evans.

33. At all times relevant hereto, defendants, including defendants Casey, Nikqi, Whelan and Landusky acted maliciously and with intent to injure Plaintiff.
34. At all times relevant hereto, defendants, including defendants Casey, Nikqi, Whelan and Landusky, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
35. At all times relevant hereto, defendants, including defendants Casey, Nikqi, Whelan and Landusky, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
36. As a direct and proximate result of the acts of defendants Casey, Nikqi, Whelan and Landusky, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

37. The above paragraphs are here incorporated by reference as though fully set forth.

38. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
39. Plaintiff was conscious of his confinement.
40. Plaintiff did not consent to his confinement.
41. Plaintiff's arrest and false imprisonment was not otherwise privileged.
42. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
43. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
44. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.
46. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
47. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
48. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
50. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

51. The above paragraphs are here incorporated by reference as though fully set forth.
52. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
53. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
54. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
55. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
56. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

57. The above paragraphs are here incorporated by reference as though fully set forth.

58. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
59. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
60. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. Defendants initiated the prosecution against Plaintiff.
64. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
65. Defendants acted with malice.
66. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.
67. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
68. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
69. By reason of the above, the amount of damages sought on this cause of action exceeds

the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

- 70. The above paragraphs are here incorporated by reference as though fully set forth.
- 71. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.
- 72. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
- 73. Defendants acted with malice.
- 74. The prosecution was terminated in Plaintiff's favor when he was acquitted of all charges.
- 75. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
- 76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

- 78. The above paragraphs are here incorporated by reference as though fully set forth.
- 79. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

80. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

83. The above paragraphs are here incorporated by reference as though fully set forth.

84. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

85. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

87. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

88. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINETH CAUSE OF ACTION**Negligent Hiring, Retention and Supervision Under
New York State Law**

89. The above paragraphs are here incorporated by reference as though fully set forth.
90. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
91. Defendant City breached that duty of care.
92. Defendant City placed defendants in a position where they could inflict foreseeable harm.
93. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
94. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
96. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION**Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City**

97. The above paragraphs are here incorporated by reference as though fully set forth.
98. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

99. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
100. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
101. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.
102. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

105. The above paragraphs are here incorporated by reference as though fully set forth.
106. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

107. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
108. Defendants intended to inflict substantial harm upon Plaintiff.
109. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
110. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

113. The above paragraphs are here incorporated by reference as though fully set forth.
114. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
115. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
116. Defendants intended to inflict substantial harm upon Plaintiff.

117. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

118. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
May 8, 2019

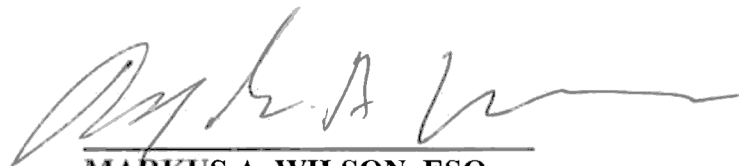


SIM & DEPAOLA, LLP
By: Markus A. Wilson
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ATTORNEY VERIFICATION

I, **Markus A. Wilson**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 8, 2019


MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RASHEEN EVANS,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and in their capacities as New York City Police Officers,
THOMAS CASEY, VALDRIN NIKQI, MICHAEL WHELAN, JASON LANDUSKY, and
JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: MARKUS A. WILSON
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for